

25VECV05816 25VECV05816

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-30

Motion: DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

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Case Number: 25VECV05816 Hearing Date: July 30, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

IRYNA BORDUIG,

Plaintiff,

vs.

FARIBORZ FARNAD, DMD and DOES 1-10,

Defendants.

CASE NO: 25VECV05816

[TENTATIVE]

ORDER RE:

DEFENDANT'S

DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Dept. W

8:30 a.m.

July 30, 2026

NO PROOF OF SERVICE

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The parties were warned about this on July 9, 2026.

[TENTATIVE] ORDER: The Court SUSTAINS the demurrer as to the third and fourth causes of action with leave to amend.

Background

This

is a medical malpractice case. Plaintiff alleges that Defendant Fariborz Farnad, a jaw surgeon, performed a double jaw surgery on Plaintiff on February 5, 2024. Plaintiff alleges that Defendant performed this surgery negligently, which caused her serious and lasting injury, including jaw pain, obscured vision, and an inability to sleep.

On October 13, 2025, Plaintiff filed suit against Defendant, alleging five causes of action: 1) medical negligence, 2) breach of fiduciary duty, 3) fraudulent concealment, 4) intentional misrepresentation, and 5) negligent misrepresentation.

On May 7, 2026, Plaintiff filed a First Amended Complaint (FAC). Now, the Court hears Defendant's demurrer to the FAC.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Defendant provides the declaration of his attorney, Hayley Tharpe. Ms. Tharpe states that on May 27, 2026, Defendant attempted to meet and confer

with Plaintiff over the phone to discuss the issues raised in this pleading. (Tharpe Decl. ¶ 10.) Unfortunately, the parties were unable to resolve these issues informally. (Id. ¶ 11.) Thus, the Court finds that Defendant has met his meet and confer obligations.

Discussion

Defendant demurs to Plaintiff's First Amended Complaint (FAC). Specifically, Defendant demurs to the third cause of action for fraudulent concealment and the fourth cause of action for intentional misrepresentation. (Demurrer, p. 3:4-11.)

A demurrer tests the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be true. (Id. at 994.) Here, Defendant argues that Plaintiff fails to allege facts sufficient to support either cause of action.

i)

Third Cause of Action: Fraudulent Concealment

Defendant demurs to the third cause of action for fraudulent concealment. (Demurrer, pp. 4:26-7:7.) Defendant argues that Plaintiff has failed to allege an intent to defraud and has failed to plead fraud with the requisite specificity. (Demurrer, pp. 4:26-7:7.)

a) Intent to Defraud

First, Defendant argues that Plaintiff fails to allege the third element of this cause of action. The elements of fraudulent concealment are: (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (or scienter); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Lazar v. Sup. Ct.* (1996) 12 Cal.4th 631, 638.)

Here, Plaintiff has failed to allege the third element of this claim – an intent to defraud. In the FAC, Plaintiff alleges that Defendant, “did not inform Plaintiff of the potential negative results of such a procedure, and the

potential pain and suffering that could result therefrom. Further, he never told her prior to the operation either the potential consequences of such a procedure, nor gave her any alternatives to that procedure, again despite knowing of them due to his advertised expertise in this area.” (FAC ¶ 52.) These factual allegations do not establish an intent to defraud. They only establish that Defendant failed to inform Plaintiff of the risks and alternatives to her course of treatment. Thus, there are no facts alleged that establish the third element of Plaintiff’s claim.

In Opposition, Plaintiff argues that she has pled intent to defraud. Specifically, Plaintiff cites to paragraph 48 of the FAC. (Opp. p. 4:4-6.) However, paragraph 48 of the FAC is just a reiteration of the five elements of fraudulent concealment – not a factual allegation describing Defendant’s conduct. Thus, Plaintiff’s argument is unpersuasive.

b) Specific Fraud Pleadings

Second, Defendant argues that Plaintiff has not met the particularity requirement for claims of fraud. (Demurrer, p. 7:3-7.) Generally, fraud must be pled with particularity. (Hills Transportation Co. v. Southwest Forest Ind., Inc. (1968) 266 Cal.App.2d 702, 707.) Plaintiffs’ pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) However, in cases claiming fraud through non-disclosure, it’s not practical to allege facts showing how, when and by what means something did not happen. (Alfaro v. Community Housing Improvement System Planning Assn. (2009) 171 Cal.App.4th 1356, 1384.) Instead, a claim of fraud based on nondisclosure may arise, “when one party to a transaction has sole knowledge or access to material facts and knows that such facts are not known to or reasonably discoverable by the other party.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.) Often this is referred to as a “duty of disclosure”.

Plaintiff’s third cause of action alleges fraud via the non-disclosure of the risks of the jaw operation, as well as the potential alternative treatments. (FAC ¶ 52.) Thus, per Goodman, Plaintiff only needs to allege facts establishing that defendant had sole access to material facts not known to or reasonably discoverable by Plaintiff.

Here, Plaintiff fails to allege these facts. Plaintiff only alleges that, "[Defendant] had a fiduciary duty of full and absolute disclosure to Plaintiff, that is, he had a fiduciary duty to be completely truthful and candid with his patient and disclose all material facts to the patient." (FAC ¶ 49; see also, FAC ¶ 26.) In order to support this conclusory allegation, Plaintiff must allege specific facts that, assumed as true, establish that Defendant possessed exclusive knowledge about the risks of Plaintiff's procedure, and the potential alternative options.

In Opposition, Plaintiff asserts that they have alleged the existence of a duty to disclose, and that California law recognizes the duty of a physician to disclose material relevant information, specifically, through paragraphs 26 and 49. (Opp. p. 3:16-24.) The Court disagrees. The allegations Plaintiff points to are about general professional duties, not the specific "duty to disclose" outlined in the Goodman case.

That being said, the Court believes the facts of this case indicate that Plaintiff could easily amend their FAC to plead a valid cause of action. Given that Defendant is a doctor, and Plaintiff is a layman, it is almost certain that Defendant had sole access to material facts about Plaintiff's medical treatment, giving rise to this lower pleading threshold for fraudulent concealment. But Plaintiff still needs to make specific allegations in support of that assumption. Thus, the Court intends to grant leave to amend on this issue.

For these reasons, the Court SUSTAINS the demurrer as to the third cause of action with leave to amend.

ii)

Fourth Cause of Action: Intentional Misrepresentation

Defendant also demurs to the fourth cause of action for intentional misrepresentation. (Demurrer, pp. 7:8-8:28.) Specifically, Defendant argues that Plaintiff has failed to allege any affirmative false statements by Defendant with the requisite specificity for a fraud cause of action. (Demurrer, p. 7:17-26.)

The elements of intentional misrepresentation claim are nearly identical to a fraudulent concealment claim: 1) a misrepresentation (false

representation, concealment, or nondisclosure); 2) knowledge of falsity; 3) intent to defraud; 4) actual and justifiable reliance; and 5) resulting damage. (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1268.) Crucially, fraud must be pled specifically; general and conclusory allegations do not suffice. (Lazar v. Superior Court, (1996) 12 Cal. 4th 631.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. (Id.)

Here, Plaintiff does not allege facts as to specific false representations made by Defendant. (FAC ¶¶ 55-61.) Instead, Plaintiff pleads generally as to Defendant's duties as a medical provider, and that, "[Defendant] did not inform Plaintiff of the potential negative results of such a procedure, and the potential pain and suffering that could result therefrom despite knowing of them due to his advertised expertise in this area." (Id. ¶ 57.) These pleadings do not rise to the level of specificity required under California law. Namely, they do not allege what was said, who said it, who it was said, to, when it was said, or how the information was communicated.

In Opposition, Plaintiff asserts that they have alleged specific factual misrepresentations. Specifically, Plaintiff points to paragraph 4 of the FAC, which outlines multiple claims made by Defendant, such as, "the former Director, and clinical professor, of Oral and Maxillofacial Surgery at the University of Southern California (USC)," and that he was, "Los Angeles Best TMJ and Jaw Surgeon." (Opp. pp. 4:27-5:2; see also, FAC ¶ 4.) The Court does not find that these are allegations of affirmative misrepresentations made to Plaintiff. At no point does Plaintiff allege that Defendant was not a professor of oral surgery. (See generally, FAC.) Moreover, these are clearly puffery statements, not affirmative misrepresentations made directly to Plaintiff in an attempt to mislead her.

Additionally, Plaintiff argues that they were misled because Defendant omitted material facts from them. (Opp. p. 5:7-22.) But this is a claim of fraudulent misrepresentation, not fraudulent concealment. Omissions of material fact are relevant to Plaintiff's third cause of action, not the fourth cause of action.

For these reasons, the Court agrees that Plaintiff has failed to allege sufficiently specific facts as to what misrepresentations Defendant made. Thus, the Court SUSTAINS the demurrer as to the fourth cause of action, with leave to amend.

Conclusion

The Court SUSTAINS the demurrer as to
the third and fourth causes of action with leave to amend.

IT

IS SO ORDERED, Plaintiff TO GIVE NOTICE.

July 30, 2026

Judge of the Superior Court